

July 12, 2026

Component: U.S. Immigration and Customs Enforcement

Subject line: Two final decision documents — Roxbury, N.J., warehouse disposition and reconsideration (1879 Route 46, Ledgewood)

Pursuant to the Freedom of Information Act, 5 U.S.C. § 552, I request two discrete records held by U.S. Immigration and Customs Enforcement.

Background. In *State of New Jersey and Township of Roxbury v. U.S. Immigration and Customs Enforcement*, No. 26-02884 (D.N.J.), a joint status report filed June 29, 2026, represented that the government no longer intended to convert the ICE-owned warehouse at 1879 Route 46, Roxbury Township (Ledgewood), N.J., into a detention facility and intended to sell it. A notice filed July 10, 2026, states that on July 8, 2026, DHS officials informed government counsel that, upon reconsideration, the agency intends to move forward with plans to consider retrofitting the warehouse for detention use.

Records requested:

1. The final decision memorandum, action memorandum, or equivalent approval document reflecting the agency's decision to dispose of or sell the Roxbury Township warehouse rather than convert it to a detention facility, dated or approved between June 1, 2026, and June 29, 2026.
2. The final decision memorandum, action memorandum, or equivalent approval document reflecting the agency's reconsideration of that decision, dated or approved between July 1, 2026, and July 10, 2026.

Scope. This request seeks two discrete final documents — not including drafts, communications, or email — likely totaling fewer than 25 pages and likely held by a single program office. I exclude attachments, transmittal emails, news clippings, and duplicates. If either decision was documented in a form other than a memorandum (for example, a signed determination or an approval routing form), that final document satisfies this request. Suggested search terms: "Roxbury," "Ledgewood," "1879 Route 46."

If any portion of a responsive record is exempt, please release all reasonably segregable non-exempt portions and identify the exemption claimed for each withholding.

Fee category and fee waiver

I request classification as a representative of the news media under 6 C.F.R. § 5.11(b)(6). I am a reporter and founder of Project Salt Box, a nonprofit investigative newsroom that publishes original reporting on federal detention contracting at projectsaltbox.com and maintains a public facility tracker at tracker.projectsaltbox.com. I gather information of current interest to the public, use my editorial skills to turn raw materials into distinct works, and distribute those works to a general audience.

I further request a waiver of all fees under 6 C.F.R. § 5.11(k).

Addressing each factor:

Operations or activities of the government. The records concern identifiable federal operations: the Department of Homeland Security's decision to dispose of a federally owned \$129 million property, and its subsequent decision to reconsider — decisions the Department of Justice represented to a federal court on the government's behalf in *State of New Jersey v. ICE*, No. 26-02884 (D.N.J.). The connection between the records and those operations is direct and clear: the records requested are the decision documents themselves.

Informative value of the records. The requested records are not in the public domain and are meaningfully informative. The court record discloses that the government reversed its position; it does not disclose why. The July 10, 2026 notice states only that DHS officials reconsidered, citing no facts, analysis, or rationale for either the original decision or the reversal. The requested documents are the only records that can supply the basis for the two contradictory representations.

Contribution to public understanding. Disclosure will contribute to the understanding of the public at large, not the requester alone. I am a reporter and founder of Project Salt Box, a nonprofit newsroom that publishes original reporting on federal detention contracting at projectsaltbox.com, without a paywall, and maintains a public facility tracker at tracker.projectsaltbox.com. Project Salt Box has previously published reporting built on records obtained under FOIA. I intend to analyze the requested records and publish both my findings and the records themselves. Public interest in this subject is demonstrated, not speculative: the property is the subject of litigation brought by the State of New Jersey and the Township of Roxbury, sustained coverage by state and national outlets, and public opposition including rallies attended by hundreds of residents.

Significance of the contribution. The public's current understanding consists of two contradictory court filings and no stated reason. Disclosure would move that understanding from the fact of the reversal to its basis — including whether the reconsideration rested on new information, a changed assessment of the property, or direction from officials outside the agency. That is a significant enhancement over the existing baseline, which the government's own filings have left at zero.

Absence of commercial interest. Project Salt Box is an all-volunteer nonprofit. Its reporting is published free of charge, and I have no commercial interest that disclosure would further. The public interest identified above is the sole interest in these records. Given the small volume requested, fees in any event should be minimal.

Expedited processing

I request expedited processing under 6 C.F.R. § 5.5(e)(1)(ii) and (iv).

There is an urgency to inform the public about actual or alleged federal government activity, and I am a person primarily engaged in disseminating information. The reversal described above is the subject of active litigation with a joint status report due July 17, 2026, and ongoing coverage by Project Salt Box and other outlets. The matter is also one of widespread and exceptional media interest in which there exist possible questions about the government's integrity that affect public confidence: the government has taken contradictory positions before a federal court, in a case where DHS's February 2026 purchase announcement was likewise issued, retracted as unauthorized, and then confirmed within a single week.

I certify that the foregoing statements in support of expedited processing are true and correct to the best of my knowledge and belief.